CUSTOM AS A SOURCE OF INTERNATIONAL LAW OF OUTER SPACE

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One of the principal features of the process by which the international law of outer space is formulated is that, in contrast to the formation of the traditional parts of the law of nations, the creation of this new branch of international law, which regulates the relations of states in the exploration and use of outer space, even at the early stages was dominated by the making of treaty law. The advent and rapid development of human activities in the exploration and use of outer space more than a quarter of a century ago has led to the prompt conclusion of a number of important multilateral treaties in this field. The foundation of the international legal order in outer space was established by the 1967 Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, Including the Moon and Other Celestial Bodies[1] which laid down the general principles and rules of the law of outer space.The predominance of treaty over custom in the formation of international space law is the result of the operation of at least three factors which have exerted a particular influence on the norm-creating process in this new field of state activity.

The first factor is the number of states participating in the exploration and use of outer space and in the norm-creating processes that produce legal norms for the regulation of the activities of states in this field. Until recently, only a small number of states have participated in either space activities or the relevant lawmaking activities. Participating states were able to reach a consensus on a number of problems within a very short period of time, and this has led to the conclusion of universal legal documents establishing the existing system of the treaty principles and rules of space law. However, the number of states participating in space activities in one form or another is growing. The expansion of space activity and the development of new uses of space technology increasingly affect the legal rights and interests of almost all members of the international community. Thus, the awareness of the importance of space-

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[1]The Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, Including the Moon and Other Celestial Bodies, was signed on January 27, 1967, and entered into force October 10,1967,[1967] 18 U.S.T. 2410, T.I.A.S. No. 6347, 610 U.N.T.S. 205.

related activities and the significance of the legal problems connected with these activities is also growing. Consequently, these problems draw the attention of various states, including those which, as yet, do not possess any capacity to engage in space activities. The active participation of an increasingly large number of states in the process of creating treaty law leads to a situation in which the adoption of new conventional rules of universal acceptance, governing new types of activities or new problems, becomes a more difficult task.

The second factor favoring treaty as a source of international law of outer space is the specific character of the problems which arise in the field of space-related activities. A considerable number of these problems arise in various fields of technical cooperation in the use of outer space and, as a result, require the creation of detailed rules which could clearly spell out the rights and obligations of the states concerned. It is obvious that only international treaties can serve as a source of the specific and detailed legal regulation of the relations of states. In this case, custom remains in the background because, as a source of international law, it can produce only general and broad legal obligations.

The third factor is a tendency to the more rapid development of legal regulation of space activities as compared with the development of the actual practice of states in the exploration, use and exploitation of outer space. This tendency dominated the early stages of the formation of outer space law. During the formation of this branch of international law, a number of treaty rules were being created and became legally binding before the problems governed by these rules could be realized in space activities.

Treaty, as a source of international law, can be used as an instrument of anticipatory legal regulation of future types of activities or future situations which do not exist at the moment of the conclusion of a treaty. Custom, in contrast to treaty, cannot serve as a source of anticipatory creation of legal rights and obligations because it is based on the practice of states. Customary international law, as Judge V. Koretsky put it, "turns its face to the past."[2] Where the formation of the law is influenced to a considerable extent by the tendency toward anticipatory treaty regulation, the role of custom is bound to be reduced to a minimum, at least in the areas in which agreement on such an anticipatory treaty regulation has been achieved.

All these factors, however, could not lead to a complete disappearance of the role of custom as a source of the international law of outer space. First, the importance of customary rules of general international law which establish the basis of the international law of outer space should be mentioned. Second, practice has shown that custom served as a source for the creation of a number of important general rules and still serves as a form of the existence of these rules. It should also be borne in mind that the modern practice of states in the exploration and use of outer space continues to produce new customary rules.

Notwithstanding the peculiarities of the formation of various branches of international law, the role of custom as a source of the creation and as a form

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[2]I.C.J. REPORTS 156 (1969).

of the existence of legal rights and obligations of states is conditioned by the structure of the international community. The absence of international legislation is the reason why international law-making is a very specific process having, among others, the following features: (1) the conventional and customary norms can be created only by the agreement of interested states; (2) the broad agreement leading to the creation of customary norms, which are constituted by the constant and uniform practice of states, can be achieved before these states reach an agreement concerning the specific normative content of relevant conventional norms in the framework of the formal treaty norm-creating procedure; (3) the legal norms laid down in a codifying act do not automatically bind all the members of the international community.

It follows, therefore, that international custom will play a significant role in the following two situations: (1) custom serves as a source of legal rights and obligations of states in those fields of their mutual relations, in which the treaty regulation is absent for one reason or another; (2) custom regulates the relations of states which are non-parties to a codifying convention, the relations of states which are parties to a convention and of states which are non-parties.

The practice of international law of outer space shows that states find it necessary to rely on rules of customary international law of outer space in both of these situations.

Customary Rules of Modern International Law of Outer Space

In the first situation referred to above, international custom leads to the creation of legal rights or obligations of states independently of the existence of any treaty regulation. As a specific norm-creating procedure, international custom is based on the constant and uniform practice of states. The emergence of a constant and uniform state practice in a new field of international relations, which requires legal regulation, leads to the establishment of new rules of customary international law if certain requirements laid down by international law are met. These requirements include those of generality, consistency, uniformity and *opinio juris*.[3]

The practice of states constituting an international custom is the result of the interaction of legal claims put forward, in one form or another, by some states in the domain of interstate relations, and of active or passive reaction to these claims on the part of other states whose interests are affected. The interaction of legal claims, which are the expression of a legal standpoint of a given state with respect to a particular problem, and reaction to these claims, is a specific process of "negotiations" among the states concerned. These "negotiations" are conducted not in the framework of formal procedure, but by way of actions, unilateral and/or multilateral acts and statements. This process gradually leads to the emergence of consensus among interested states as to the rec-

[3]*See* Danielenko, *Customary Rule Formation Process in Contemporary International Law*, in SOVIET Y.B. INT'L L. 151-70 (1983) (in Russian, with English summary).

ognition of a rule of conduct established by constant and uniform practice as a rule of customary international law.

The analysis of the practice of states before the conclusion of the 1967 Outer Space Treaty shows that historically custom was the first source of the international law of outer space. The state practice in the field of exploration and use of outer space has led to the emergence of a number of important principles and rules of international space law.[4]

Among the fundamental principles and rules which were created by the practice of states before the conclusion of the 1967 Outer Space Treaty, and which were subsequently codified by this Treaty, the most important are the following: outer space is open and free for exploration and use by all states; the sovereignty of states does not extend to outer space; outer space is not subject to national appropriation; and states retain jurisdiction and control over space objects launched into outer space.

These principles have emerged in the practice of states within a very short period of time. The acceleration of the formation of customary principles relating to outer space was brought about not only by the fact that all actions of states in the field of exploration and use of outer space were immediately known all over the world, but also by the adoption of a number of United Nations General Assembly resolutions. These resolutions include the General Assembly Resolution of December 13, 1963,[5] which contained a Declaration of Legal Principles Governing Activities of States in the Exploration and Use of Outer Space.[6]

The passage of only a short period of time after the beginning of the exploration and use of outer space did not prevent the customary norms of the international law of outer space from coming into existence. In contrast to certain systems of municipal law, international law does not require the existence of practice from "times immemorial" for the creation of its customary rules. Furthermore, in modern international law the requirement of a long period of

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[4]*See* M. LACHS, THE LAW OF OUTER SPACE: AN EXPERIENCE IN CONTEMPORARY LAW-MAKING, 136 (1972); Marcoff, *Sources du droit international de l espace*, 568 RECUEIL DES COURS 60-61 (1980).

[5]Declaration of Legal Principles Governing Activities of States in the Exploration and Use of Outer Space, *submitted by* Committee on Peaceful Uses of Outer Space, Resolution 1962 (XVIII), *adopted unanimously* by the General Assembly on December 13, 1963 (1280th meeting), as recommended by First Committee A/5656, Draft Resolution 1.

[6]This does not mean, however, that the practice of inter-state relations in the field of the exploration of outer space has led to the emergence of "instant" customary international law, as some authors believe. *See* B. Cheng, UNITED NATIONS RESOLUTIONS ON OUTER SPACE: "INSTANT" INTERNATIONAL CUSTOMARY LAW?, 5 INDIAN J. INT'L L. 36 (1965). Customary international law can not come into being "instantly" because custom is based on constant and uniform practice. The consolidation and recognition of general, constant and uniform state practice require the existence of a number of precedents. It is obvious, that custom calls for the passage of at least a certain period of time.

time, which was valid in the traditional law of nations, has gradually lost its importance owing to the rapid development of interstate relations. The International Court of Justice confirmed the generally recognized rule when it stated that "the passage of only a short period of time is not necessarily, or of itself, a bar to the formation of a new rule of customary international law." [7]

During the 1960's, on the doctrinal level there were two different points of view as to the question concerning the role and importance of custom in the formation of the emerging law of outer space. Reflecting the traditional approach to the problem of the sources of international law, some western writers have expressed the view that custom would be the main source of space law. In this connection, Myres McDougal, for example, wrote as early as 1965 that "the implicit communications of customary behavior play a much more important role than agreement or other deliberate formulation."[8] The development of space law has shown that, at least with respect to this branch of international law, this statement does not correspond to reality. It should be noted, that even Myres McDougal had to admit that in the area of law relating to space activities, custom was not an adequate source for the legal regulation of some specific technical problems such as in the field of telecommunications, which called for detailed treaty regulation.[9]

The opposing position was that custom could not be an adequate source of the international law of outer space. For example, P. I. Lukin has stated that the "international law of outer space can find the reliable source of its inception and subsequent development only in international agreements."[10] This extreme point of view did not reflect the practice of international law of outer space because, among other things, it led to the unacceptable conclusion that, before the 1967 Space Treaty, states had conducted space activities in a legal vacuum.

In the modern international law of outer space, custom serves as a source of the creation and as a form of the existence of a number of rules governing the relations of states in those areas in which, up to now, there was no treaty regulation.

The expansion of the activities of states in the exploration and use of outer space, and the use of new technologies in outer space, create new situations which require legal regulation. As the result of the influence of a number of factors, however, including the increasingly large number of states participating in the making of treaty law, the progress in the formulation of new conventional rules of space law is not as fast as it was before. In some areas, the formulation of new conventional rules is not keeping pace with the require-

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[7] I.C.J. REPORTS 43 (1969).

[8] McDougal, THE EMERGING CUSTOMARY LAW OF SPACE, 58 NW. U.L. REV. 625 (1965).

[9] *Id.* at 637, 640.

[10] Lukin, *To the Question of the Sources of Space Law*, in QUESTIONS OF INTERNATIONAL LAW 141 (1963) (in Russian).

ment of international practice. In these areas, custom plays an important role and serves as a primary source for the creation of international legal rights and obligations of states.

It should be noted that international custom, as a rule, is the result of the agreement of states on a broad principle which only defines the general outlines of the proper and permissible conduct of states and other subjects of international law in a given sphere. This explains the shortcomings of custom as an instrument of legal regulation because, in certain instances, the application of customary law to specific problems fails to give precise results. Nevertheless, as international practice shows, customary law can be successfully used for resolving controversies in the fields of international law where there is no treaty regulation. If there is an international legal dispute, existing customary rules can give an answer at least to the question of what direction should be taken for resolving this dispute.

Among the problems which are not governed by treaty law, the most important one is the problem relating to the delimitation of air space and outer space. During the negotiations on the 1967 Outer Space Treaty, the participating states were unable to reach agreement on this problem. Thus, the Treaty does not contain any rules defining the sphere of its application. Efforts to establish special treaty regulation of the problem have been unfruitful notwithstanding the fact that the issue of delimitation has been discussed in the United Nations Committee on the Peaceful Uses of Outer Space since 1967.

The practice of states in the exploration and use of outer space by means of artificial satellites, has led to the emergence of a customary rule of space law to the effect that the region at and above the line determined by the lowest perigee of satellites so far placed in orbit (approximately 100 km above sea level) is not subject to the sovereignty of underlying states and therefore is outer space. This rule was expressly or tacitly recognized by all, or almost all, members of the international community. That was the reason the Soviet representative stated, during the discussions in the Legal Subcommittee on the United Nations Committee on the Peaceful Uses of Outer Space, that "it had become an international legal custom to regard the boundary between air space and outer space as passing through the altitude of minimum satellite perigee, i.e., at approximately 100 km above sea level."[11]

The problem of delimitation is closely connected with the problem of a right of peaceful or innocent passage for spacecraft of a state through the territorial air space of another state at altitudes lower than 100 km for the purposes

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[11]U.N.Doc. A/AC.105/C.2/SR.392, at 4 (April 5, 1983). *See* Danielenko, *The boundary between air space and outer space in modern international law* (in Russian with English summary), 9 J. SOVIET STATE & L. 71-79 (1984). *See also, inter alia,* Cheng, *The Legal Regime of Airspace and Outer Space: The Boundary Problem, Functionalism Versus Spatialism: The Major Premises,* 5 ANNALS AIR & SPACE L. 323-61 (1980); Gorove, *International Space Law in Perspective: Some Major Issues, Trends and Alternatives,* 181 RECUEIL DES COURS 361-62 (1983); Zhukov, *Delimitation of Outer Space,* in PROC. OF THE 23RD COLLOQUIUM ON THE LAW OF OUTER SPACE 221 (1980).

of reaching the orbit and returning from the orbit to Earth. The recognition of the right of free passage for spacecraft through the air space of other states is of particular importance for states having small territories because, for physical reasons, these states can only reach outer space by passing through the air space of adjacent states. Thus, without the right of passage, these states would be unable to enter outer space.

Some authors have expressed the view that at this stage there exists,[12] or at least is emerging,[13] a rule of customary law allowing free passage of space objects through the national air space of the other states.

The analysis of international practice shows, however, that it is hardly possible to talk about the existence of a general customary rule governing the relations of all states in this field notwithstanding the fact that there seems to exist a genuine *opinio juris sive necessitatis* on the part of the international community. Up to now, the practice of passage of space objects through foreign air space did not have the required level of generality. It seems that the passage has been carried out only through the air space of some states adjacent to the major space powers. In some cases, the practice of passage has been continued and repeated. Thus, it can probably be argued that this practice is of a longstanding character.

During the 1960s, some of the soviet space probes passed through the air space of adjacent states for the purpose of landing in the territory of the Soviet Union. The Soviet probe Zond-6, for example, descended to Earth from the southern part of the hemisphere and, as it was reported in the Soviet press, had landed in the territory of the U.S.S.R. at a point which was "9,000 km distant from the area of the southern part of the Indian Ocean where the station plunged into the atmosphere."[14] It is obvious that, while engaged in landing in the territory of the launching state, a space object of this type requires passage through the air space above the territory of the adjacent and, perhaps, not far distant states at the altitudes below the established boundary between air space and outer space. With regard to the United States, at least one clear precedent was established during the landing of the shuttle orbiter Challenger on October 13, 1984. The shuttle Challenger flew directly over Canada through its territorial air space and crossed the U.S. border at the height of 222,000 feet, i.e., 6,767 kilometers.[15]

The existence of such practice is bound to have legal consequences for the relations of the states concerned. In this connection, it should be emphasized

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[12]*See*, V. BORDUNOV, *Space Shuttle Flights and Correlation of Legal Regimes of Air Space and Outer Space*, in PROC. OF THE 25TH COLLOQUIUM ON THE LAW OF OUTER SPACE 212 (1982).

[13]*See* REPORT OF THE 59TH CONFERENCE OF THE INTERNATIONAL LAW ASSOCIATION 183 (Belgrade, 1980) (remarks by Mr. Chowdrury).

[14]Izvestia, April 11, 1969.

[15]*See* 122 AVIATION WEEK & SPACE TECH. 24 (1984).

that the passage of space objects through the area which, according to the generally recognized rule, is under the sovereignty of underlying states, can and does affect the legal rights and interests of these states. At the same time, the states concerned did not protest against the passage of space objects through their national air space. According to international law currently in force, the absence of protests on the part of states whose interests are affected, amounts to acquiescence in the practice relating to the passage of space objects. In other words, the failure to protest creates a presumption of a tacit recognition of the right of passage for space objects.[16]

Although the existing practice concerning the passage of space objects through foreign air space is not yet able to create a general rule of customary international law, because of its local nature, it is quite possible that this practice has given rise to a local or particular custom governing the relations of neighboring states.[17] In the course of time, and with the development and consolidation of general, constant and uniform state practice in the field of passage of space objects, this local custom may be gradually transformed into a general rule of customary law that is binding upon all states.

At this stage of the development of the international law of outer space, there are other rules of customary law relating to space activities. It is generally recognized, for instance, that the wide-spread and longstanding practice of the remote sensing of the earth and of its natural resources, has given rise to a rule of customary law according to which there is a right to carry out remote sensing programs without the prior consent of the sensed states.[18]

The problem of the legal regulation of space activities connected with the exploration of the natural resources of Earth by means of remote sensing has been discussed in the U.N. Committee on the Peaceful Uses of Outer Space for a long period of time. Initially, some of the developing states expressed the view that remote sensing, without the prior consent of the sensed state should be prohibited.[19] However, at this stage of the negotiations on the principles governing remote sensing, there is a consensus among states with respect to the recognition of a right of all states to freely conduct remote sensing programs in outer space. Thus, the major issue in this field has shifted from the existence of the right to carry out remote sensing without the consent of the sensed

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[16]For this reason we cannot agree with a different view expressed by W. Schwenk. *See* Schwenk, *Der Durchflug von Weltraumrecht durch den nationalen Luftraum*, 31 ZEITSCHRIFT FUR LUFT-UND WELTRAUMRECHT 8 (1982).

[17]*See* E. MALENOVSKY, *To the Problem of the Right of the Passage Through the Airspace of Other States During the Post-Take-Off and Return Phases of Space Flights*, in PROC. OF THE 25TH COLLOQUIUM ON THE LAW OF OUTER SPACE 134 (1982).

[18]*See* Haraszti, *Outer Space and Sovereignty*, in INTERNATIONALE FESTSCHRIFT FÜR ST. VEROSTA 143 (1980); C. CHRISTOL, THE MODERN INTERNATIONAL LAW OF OUTER SPACE 757 (1982).

[19]See, for example, the proposal for the regulation of remote sensing put forward by Argentina and Brazil. U.N.Doc.A/C.1/1047 (October 15, 1974).

stated, to the problems relating to the dissemination of data and information acquired by remote sensing.

With respect to these problems, there is great dissention among various groups of states. The practice in this field also shows a lack of consistency and uniformity. Some western states, championing the free dissemination of data, have sought to establish a general customary rule allowing the unlimited freedom of dissemination of data obtained by remote sensing. Such unlimited dissemination and analyzed information based on those data, including data concerning natural resources of foreign states, have met with the considerable opposition of a large number of other states. These states represent the view that data above a certain threshold of resolution should not be disseminated without the consent of the sensed state. The opposition was expressed not only in the official statements of various states which objected to the dissemination of data acquired within their territory without their prior consent, but also in the treaty practice. A very important precedent in this field was established by a group of socialist states which concluded the Convention on the Transfer and Use of Data of the Remote Sensing of the Earth from Outer Space.[20] The Convention restricts the dissemination of the acquired data with a spacial resolution finer than 50 meters.

In regard to the question of the right to carry out the remote sensing, it should be noted that the remote sensing has been conducted by states possessing space capabilities for a long period of time, yet the states conducting remote sensing programs sought no permission. This practice has not encountered protests from the states whose interests were affected, notwithstanding the fact that in the early stages of the discussions on this problem, in the U.N. Committee on the Peaceful Uses of Outer Space, there were differences in opinions among various states.

The existence of general consent to current practice, and to the underlying claim on the part of the space powers to the right to engage in remote sensing activities in outer space without the consent of the sensed state, is not only the result of the active sensing practices of the space powers and the passive attitudes of the sensed states which have acquiesced in the legal standpoint claimed by space powers. A growing number of states lacking space capabilities, actively participate in various forms of international cooperation in the field of remote sensing. Further, these states actively establish, operate or plan to construct groundbased receiving stations, and acquire and use the data obtained by the existing remote sensing programs for their economic development. An active practice of this type is strong evidence of recognition on the part of the community of states of the legality of the remote sensing of foreign territory without the prior consent of the sensed state.

Custom as a source of international law, leads to the recognition of the legality of the existing practice if there is general consent, expressed in one form or another, to the observable rule of conduct on the part of the members of the international community. In this respect, the operation of custom in the

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[20]U.N.Doc. A/33/162 (June 29, 1978).

field of remote sensing is not an exception. In this connection, an American commentator has observed that "when the National Aeronautics and Space Administration sent the first ERTS (remote sensing satellite) up into outer space it also sent it into a relative legal vacuum as an instrument which may, orbit after orbit, carve out for itself the necessary norm permitting it to do legally what it was sent out to do in the first place."[21]

The Relationship Between Treaty and Custom in the Modern International Law of Outer Space

Custom as a source of international law is of great importance even in the areas of law where there is a multilateral convention. In this situation, custom operates alongside of the convention and may extend the sphere of the validity of certain general rules contained in the convention. This is of great significance for various branches of international law, including the international law of outer space, where existing multilateral conventions do not formally bind all members of the international community. Thus, the effectiveness of fundamental legal rules in this field depends on the relationship between treaty and custom aimed at extending the scope of application of application of general international norms of conduct relating to space activities.

It is generally recognized that treaty and custom interrelate on the following two main levels:

(1) A treaty may incorporate and confirm the existing customary law. The treaty rules reflecting existing customary law are legally binding on all states independently of their participation in the treaty containing these rules. The International Law Commission has stated in this respect that "a principle or rule of customary international law may be embodied in a bipartite or multipartite agreement so as to have, within the stated limits, conventional force for the states parties to the the agreement so long as the agreement is in force; yet it would continue to be binding as a principle or rule of customary international law for other states."[22]

(2) A treaty may also contain new rules which regulate new problems or change the existing norms. New rules of conduct contained in a treaty can become rules of customary law binding on all states, if there is a general, constant and uniform state practice accepted as law. The possibility of the extention of the scope of application of treaty rules via custom is recognized by the Vienna Convention on the Law of Treaties.[23] According to Article 38 of the Convention, a rule set forth in a treaty could become "binding upon a third state as a customary rule of law, recognized as such."

The two main levels of the relationship between treaty and custom are of

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[21]Z.J. Slouka, *International Law-making: A View from Technology*, in LAW-MAKING IN THE GLOBAL COMMUNITY 164 (N.G. Onuf ed. 1982).

[22]Y.B. INT'L L. COMM'N 368 (1950).

[23]U.N. DOC. A/CONF. 39/27 Rev.1 (1970).

particular importance for the universal validity of a number of fundamental principles and rules of space law embodied in the 1967 Outer Space Treaty. At present, the 1967 Treaty formally binds a little more than 80 states. The analysis of the practice of states, however, shows that there is ground for the assumption that, notwithstanding the fact that there is no universal formal recognition of the Treaty, all the members of the international community are bound by the fundamental principles and rules contained in it because these principles and rules have acquired the status of general customary law. It follows that, independent of the formal participation in the 1967 Outer Space Treaty, all states should observe the obligations arising from its provisions because these provisions are binding as rules of customary law.

A lucid illustration of the importance of the relationship between treaty and custom is the legal situation created by the claims of the equatorial states to segments of the geostationary orbit.

Some of the equatorial states which are not parties to the 1967 Outer Space Treaty, claimed that they are not bound by the principles embodied in the Treaty. In particular, these states claimed that they are not bound by the principles relating to the freedom of exploration and non-appropriation of outer space contained in Articles 1 and 2 of the Outer Space Treaty independent of a formally agreed to and accepted international agreement.[24]

The overwhelming majority of states have rejected the arguements of the equatorial states on the ground that the provisions of the Outer Space Treaty reflected the existing general customary law which binds all states independently of the Treaty. Thus, in the course of the discussion in the Legal Subcommittee of the U.N. Committee on the Peaceful Uses of Outer Space, the representative of Czechoslovakia stated that the provisions of the 1967 Treaty relating to free and equal exploration of outer space "reflected the fundamental principle of space law, which had been declared prior to the elaboration of the Treaty and had become a customary rule in the practice of states."[25] The representative of Italy pointed out that customary international space law allowing for free and equal use of, and free access to, outer space existed before the conclusion of the 1967 Treaty and was codified in it. In this connection, he stated that the "principles embodied in the 1967 Treaty could not be regarded as binding only upon states which had ratified that Treaty."[26] The representative of Japan expressed the opinion that the principle contained in Article 1 of the 1967 Outer Space Treaty, namely that outer space was free for exploration and use by all states, "had already been established in general international law."[27] The representative of the Soviet Union stated that the principles of

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[24]See, for example, the statement by the representative of Colombia in the U.N. Committee on the Peaceful Uses of Outer Space. U.N. Doc. A/AC.105/PV.173, at 56 et seq. (1977).

[25]U.N.Doc. A/AC.105 C.2/SR.297, at 4 (1978).,

[26]*Id.* at 8.

[27]U.N.Doc. A/AC.105/C.2/SR.356, at 3 (1981).

freedom of scientific investigation in outer space and of non-appropriation of outer space, embodied in the 1967 Outer Space Treaty, "had now acquired the status of norms of customary international law and were binding even upon states which had not yet signed the Treaty."[28]

It should be noted that the doctrine of international law is unanimous on the question of the universally binding character of the fundamental principles laid down by the 1967 Outer Space Treaty. This point of view is generally recognized by the Soviet and western writers and, what is of particular importance in this case, by the writers from the developing countries. An important point made in the legal literature in this connection is that "the fundamental principles of international space law, confirmed and declared by the Outer Space Treaty, have been formulated and recognized and accepted by express consent or acquiescence by virtually all countries, developed as well as developing."[29]

The International Law Association has taken a similar view with respect to the principle of the freedom of outer space. The resolutions adopted at the 53rd and 58th Annual Conferences declared that "the freedom of outer space for exploration and use is a principle of general international law and thus a principle valid independent of any treaty."[30]

It is generally recognized that in some instances a convention may exert an influence on the general practice of states and the development of customary international law even if that convention is not yet in force. It is also recognized that a particular provision in a convention in force may possess certain precedential value even if this convention has received few ratifications. In this connection it is interesting to inquire into the question of whether the rules contained in the 1979 Agreement Governing the Activities of States on the Moon and Other Celesital Bodies[31] have altered the state of general customary international law. Of particular interest in this respect, is the provision of Article 11 of the Agreement which stipulates that "the Moon and its natural resources are the common heritage of mankind."

It has been contended that the principle of the common heritage of mankind is an existing or, at least, an emerging rule of customary international law

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[28]Doc.0 A/AC.105/C.2/SR.373, at 6 (1982). See also the statement by R.B. Owen, Legal Adviser, Department of State, to the U.S. Senate. Mr. Owen stated that certain principles laid down in the 1967 Outer Space Treaty, e.g., that outer space and celestial bodies are not subject to material appropriation, are now accepted as "customary international law." *The Moon Treaty: Hearings before the Subcommittee on Science, Technology and Space, of the Senate Committee on Commerce, Science and Transportation*, 96th Cong., 2d Sess. 21-22 (1980).

[29]R.S. Jakhu, *Developing Countries and the Fundamental Principles of International Space Law*, in NEW DIRECTIONS IN INTERNATIONAL LAW 362 (1982).

[30]REPORT OF THE 58TH CONFERENCE OF THE INTERNATIONAL LAW ASSOCIATION 2 (Manila 1978).

[31]U.N.Doc. A/Res.34/68 (1979) (entered into force on July 11, 1984).

of outer space.[32] It seems, however, hardly possible to accept such a contention for the following reasons. First, one should take into account that, in its abstract formulation, the principle of the common heritage of mankind does not create any new legal obligations. Hence, in discussing the problem of whether this principle has emerged as a new rule of customary law creating new obligations for the states concerned, one should turn to the specific aspects of the principle constituting that new right or obligations of states. Because the principle of the common heritage of mankind applies to the exploitation of the natural resources of the Moon, the specific aspects of this principle find their expression in the relevant provisions of the 1979 Moon Agreement and, in particular, in the detailed provisions of Article 11. Paragraph 5 of this Article provides that "states parties to this Agreement hereby undertake to establish an international regime, including appropriate procedures, to govern the exploitation of the natural resources of the Moon as such exploitation is about to become feasible."

The meaning, if any, of the principle of the common heritage of mankind can be interpreted in different ways. But, it is quite clear that the future regime of the exploitation of the natural resources of the Moon is of considerable importance for the realization of the objectives of this principle.

The detailed provisions of Article 11 of the 1979 Moon Agreement are the result of the tendency toward the anticipatory regulation of a situation which does not exist at this time but is possible in the future. Because there is no actual state practice indicating that these provisions have been applied and accepted in the relations of the members of the international community, one can hardly maintain that the principle of the common heritage of mankind, as embodied in the 1979 Agreement, has passed or is passing into the general customary law of outer space. In any event, one thing that can be said with certainty is that custom, as a source of international law, cannot create legal obligations concerning the future exploitation of the natural resources of the Moon before such exploitation becomes feasible and the relations of states with respect to this problem acquire the necessary level of consistency and uniformity. A treaty, as an instrument of legal regulation, can create rules aimed at regulating future problems, but the actual influence of such a treaty on the future general practice and the development of customary law can only be ascertained when the expected problems become the real and practical issues of interstate relations.

Conclusion

The practice of the international law of outer space shows that custom, as a source of legal rights and obligations of states, can be established within a short period of time even before the states concerned reach an agreement on

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[32]R.V. Dekanozov, *Forming of the Principle "Common Heritage of Mankind" and The Rules of Customary International Law of Outer Space*, in PROC. OF THE 25TH COLLOQUIUM ON THE LAW OF OUTER SPACE 219 (1982).

the provisions of a treaty aimed at governing their relations in a given area. After the conclusion of a treaty, custom regulates the relations of states which do not participate in the treaty and the mutual relations of both states who are parties to the treaty and states which are not. In both situations, custom plays an important role in the maintenance of the international legal order in outer space.